

26VECV01312 26VECV01312

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-07-07

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Tentative Ruling

Ford Motor Credit Company v. Tumasyan,

Case no. 26VECV01312

Hearing date July 7, 2026

Specially

Appearing Defendant Tumasyan's Motion to Compel Arbitration

Plaintiff

Ford Motor Credit Company sues defendant Tumasyan for the alleged breach of motor vehicle installment contract. Defendant specially appears and moves to compel arbitration. Plaintiff does not oppose but requests that the court order the parties to commence arbitration within 30 days, as the vehicle remains in defendant's possession.

California

public policy favors arbitration. Code Civ. Proc. §1280 et seq., *Madden v. Kaiser Found. Hosps.* (1976) 17 Cal.3d 699, 706. Under California's Arbitration Act, where a valid written agreement to arbitrate exists, arbitration is mandatory. Code Civ. Proc. §1281.2. The opposing party bears the burden of proving any defense to arbitrability. See *Pinnacle Museum Tower Ass'n. v. Pinnacle Mkt. Dev. (US), LLC* (2012) 55 Cal.4th 223, 236. "[T]he doctrine of unconscionability has both a procedural and substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results." See *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal. 4th 899, 910.

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Federal Arbitration Act codifies federal policy favoring arbitration, making an arbitration agreement in the Terms of Service “valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract...” 9 U.S.C. §2. “Courts must ‘rigorously enforce’ arbitration agreements according to their terms...” *Am. Exp. Co. v. Italian Colors Rest.* (2013) 570 U.S. 228, 233.

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parties concur that a valid arbitration agreement exists. See Mtn. 4:2-6; see also Decl. Ahearn, exh. A. Defendant requests that the court compel the matter to arbitration. Plaintiff does not oppose and requests that the matter be ordered to arbitration within 30 days. As this is a collections matter with the vehicle remaining in defendant's possession, this request is reasonable. GRANTED; the parties are ordered to binding arbitration per the terms of the installment contract within 30 days. The court will set an OSC re: compliance for 60 days.